IN THE HIGH COURT OF BALOCHISTAN, QUETTA
Present:
* Hon'ble Mr. Justice Irfan Saadat Khan
* Hon'ble Mr. Justice Naeem Akhtar Afghan

Civil Appeal No. 723 of 2016
Citation: PLD 2016 Lah 750
Matter ID: MAT-CIVI-2016-081

BETWEEN:
Ahmad Shah & Brothers ... Appellant / Petitioner
VERSUS
Election Commission of Pakistan ... Respondent

LEGAL TOPIC: Civil - Specific Performance
STATUTES CITED: Specific Relief Act 1877, S. 12, Contract Act 1872, S. 73, Transfer of Property Act 1882, S. 53A

JUDGMENT
1. This judgment disposes of Civil Appeal No. 723 of 2016, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Specific Relief Act 1877, S. 12 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Specific Relief Act 1877, S. 12 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 20 October 2016.